



WORDING ENHANCEMENT — MEDIA & ENTERTAINMENT

TMHCC Gap-Fill & Wording Enhancement Strategy

Strategic, action-focused recommendations to make the TMHCC Media & Music Combined base wording more holistic, clearer and demonstrably market-leading.

Wordings reviewed

- Benchmarked against all five competitor wordings:
- Tysers (Zurich), Yutree (AXA), Liberty, Allianz and AXA XL (XL Catlin) — now incorporated

Companion to the Full Coverage Comparison. Every recommendation is evidence-based — supported by at least one competitor wording. Recommendations are commercial proposals only and are subject to final TMHCC legal / underwriting sign-off.

1 Executive summary

The Full Coverage Comparison confirms that TMHCC already offers the broadest media & entertainment package in the peer group – the only wording with all fifteen sections, and the only one with Loss of Licence, Legal Expenses, Management Liability and a genuine standalone Cyber section. The purpose of this document is not to broaden recklessly, but to close the small number of places where a competitor genuinely shows more, so that TMHCC can present a tick on virtually every comparison row.

What moves the needle most

- **1.** Add a Personal Accident & Business Travel option – the only whole section two competitors offer that TMHCC does not.
- **2.** Offer a rated worldwide / US-Canada territory option for Media Liability – Tysers PI is worldwide.
- **3.** Add a Distributors & Purchasers extension and journalistic source-protection costs to Media Liability (both Tysers).
- **4.** Clarify where criminal / regulatory defence costs live (S12 vs S13/S14) – a near nil-cost fix that removes an apparent gap.

Discipline retained: TMHCC should KEEP its more restrictive positions on patents, communicable disease and default US/Canada jurisdiction. These are deliberate, defensible underwriting choices, not gaps – the worldwide/US-Canada exposure is best offered as a rated option rather than given away.

2 Strategic objective

To evolve the TMHCC base wording from 'already the broadest' to 'demonstrably market-leading on every row' – by:

- filling the few genuine coverage gaps a competitor exposes;
- adding targeted exclusion write-backs where they are commercially useful and underwriting-acceptable;
- sharpening definitions and conditions for clarity; and
- doing all of the above without diluting TMHCC's disciplined risk selection or its protective claims architecture.

Each recommendation below states the competitor evidence, the current TMHCC position, the proposed action and the underwriting/claims impact, with a priority rating.

3 Priority gap-fill recommendations

All recommendations at a glance, ordered by priority.

#	Recommendation	Evidence (competitor)	Action type	Priority
1	Add a Personal Accident & Business Travel extension/section	Tysers (extensive); Yutree (PA assault)	Add section/extension	High
2	Offer a worldwide / US-Canada territory option for Media Liability	Tysers (PI worldwide)	Add rated option	High
3	Broaden criminal / regulatory defence-costs in Media Liability (or signpost S13/S14)	Tysers (statutory defence GBP 1m); Yutree (criminal prosecution defence GBP 250k)	Clarify / cross-ref	Medium-High
4	Add a Distributors & Purchasers extension to Media Liability	Tysers (clause 8.7, up to 5x limit)	Add extension	Medium
5	Add journalistic source-protection costs to Media Liability	Tysers (clause 8.13)	Add extension	Medium
6	Add representation costs at investigations/inquiries to Media Liability	Tysers (clause 8.15, GBP 25k)	Add extension	Medium
7	Consider a limited asbestos / pollution professional-duty write-back in PI	Tysers (asbestos professional-duty write-back, GBP 1m, ex-BI); Yutree (pollution write-back for own negligence)	Add write-back	Medium
8	Make Increased Cost of Working / Book Debts explicit in BI	Allianz (ICOW; Book Debts)	Clarify wording	Medium
9	Adopt a King's Counsel dispute-resolution clause in Media Liability	Yutree (KC clause)	Amend condition	Low-Medium
10	Confirm/clarify computer-breakdown cover within S1/S2	Yutree (standalone Computer Breakdown section)	Clarify wording	Low-Medium
11	Add a defined term for 'Media Material'	Tysers (defines Media Material)	Amend definition	Low
12	LEAVE UNCHANGED — patents, communicable disease and default US/Canada exclusion	Tysers (patents, worldwide); AXA XL (supports restriction)	Leave unchanged	Low

4 Coverage gaps to consider filling

Detailed recommendation cards, in priority order.

1. Add a Personal Accident & Business Travel extension/section [Priority: High]

Competitor(s)	Tysers (extensive); Yutree (PA assault)
What the competitor does	Tysers provides a full personal-accident and business-travel section (directors/employees/visitors, family travel, assault); Yutree covers personal-accident assault.
Current TMHCC position	No standalone PA / business-travel section within the 15-section structure.
Gap / opportunity	Entertainment clients (crew, artists, touring personnel) routinely expect PA/business-travel; its absence is visible on a section-by-section comparison.
Proposed TMHCC action	Add new optional extension/section (PA & Business Travel) — capacity-permitting.
Commercial benefit	Closes a whole-section gap; lets TMHCC show a tick on a row two competitors win.
Broker / client benefit	Brokers can place crew/touring PA within the same contract.
Underwriting risk	Medium — PA/travel is well-understood; control via benefit schedule, age limits, hazardous-activity carve-outs.
Claims risk	Low-medium; defined benefits cap exposure.
Legal / underwriting review	Confirm capacity/appetite for PA & travel; draft benefit schedule and assault definition.

2. Offer a worldwide / US-Canada territory option for Media Liability [Priority: High]

Competitor(s)	Tysers (PI worldwide)
What the competitor does	Tysers PI/E&O applies worldwide with no jurisdiction exclusion.
Current TMHCC position	S12 limited to Schedule Geographical Limits; excludes actions brought/governed outside the stated Jurisdiction (default ex-US/Canada).
Gap / opportunity	Media clients with global digital distribution can be exposed to US/Canada actions; TMHCC's default looks narrower on the matrix.
Proposed TMHCC action	Add an optional worldwide (incl. or excl. US/Canada) write-back to the Geographical Limits / Legal Action exclusion, rated accordingly.
Commercial benefit	Converts a 'partial' to a 'covered' for global clients without changing the default risk appetite.
Broker / client benefit	Brokers can quote global-distribution risks competitively.
Underwriting risk	High if US/Canada included — price/sub-limit/higher excess; keep ex-US/Canada as default.
Claims risk	Higher in US/Canada (costs, punitive). Control via defence-cost caps and consent.
Legal / underwriting review	Draft optional endorsement; confirm reinsurance treaty territory.

3. Broaden criminal / regulatory defence-costs in Media Liability (or signpost S13/S14) [Priority: Medium-High]

Competitor(s)	Tysers (statutory defence GBP 1m); Yutree (criminal prosecution defence GBP 250k)
What the competitor does	Fund defence of statutory/criminal proceedings (Bribery, Corporate Manslaughter, H&S, CDM) arising from the business.
Current TMHCC position	S12 funds only Data-Protection defence costs (GBP 250k); broader criminal/regulatory defence sits in S13 Legal Expenses and S14 Management Liability.
Gap / opportunity	On a section-by-section read of S12 alone, TMHCC looks narrower.
Proposed TMHCC action	Either add a modest criminal/regulatory defence-costs extension to S12, or add an express cross-reference noting that statutory/criminal defence is provided under S13/S14.
Commercial benefit	Removes an apparent gap with minimal added exposure.
Broker / client benefit	Clarifies where the criminal-defence cover lives.
Underwriting risk	Low-medium — a clarifying cross-reference is essentially nil-cost.
Claims risk	Low.
Legal / underwriting review	Confirm S13/S14 triggers; draft cross-reference wording.

4. Add a Distributors & Purchasers extension to Media Liability [Priority: Medium]

Competitor(s)	Tysers (clause 8.7, up to 5x limit)
What the competitor does	Extends indemnity to purchasers/co-producers/distributors of the insured's media material, subject to control-of-defence and notice conditions.

Current TMHCC position	No equivalent extension.
Gap / opportunity	Production/distribution clients expect their distribution chain to be protected.
Proposed TMHCC action	Add an optional Distributors & Purchasers extension with a capped aggregate (e.g. a multiple of the limit) and clear conditions.
Commercial benefit	Strong differentiator for production-house clients.
Broker / client benefit	Supports media clients that license/distribute content.
Underwriting risk	Medium — control via 36-month claim window, certificate, control-of-defence (mirror Tysers conditions).
Claims risk	Medium; aggregate multiple must be capped.
Legal / underwriting review	Draft extension; confirm acceptable aggregate multiple.

5. Add journalistic source-protection costs to Media Liability [Priority: Medium]

Competitor(s)	Tysers (clause 8.13)
What the competitor does	Funds legal costs to challenge a subpoena/court order requiring disclosure of a source.
Current TMHCC position	Not provided.
Gap / opportunity	Broker-sensitive for editorial, news and publishing clients.
Proposed TMHCC action	Add a modest sub-limited source-protection costs extension (insurer consent; reasonable prospects test).
Commercial benefit	Distinctive, low-frequency, brand-positive cover.
Broker / client benefit	Differentiator for editorial/news clients.
Underwriting risk	Low — small sub-limit; consent and prospects-of-success conditions.
Claims risk	Low frequency.
Legal / underwriting review	Draft sub-limited extension.

6. Add representation costs at investigations/inquiries to Media Liability [Priority: Medium]

Competitor(s)	Tysers (clause 8.15, GBP 25k)
What the competitor does	Funds representation at official examinations/inquiries that could give rise to a claim.
Current TMHCC position	Provided only via Data-Protection defence; otherwise absent.
Gap / opportunity	Regulators increasingly investigate content/advertising.
Proposed TMHCC action	Add a sub-limited representation-costs extension (e.g. GBP 25k).
Commercial benefit	Cheap, visible enhancement.
Broker / client benefit	Useful for advertising/marketing clients (ASA/CMA).
Underwriting risk	Low — small sub-limit.
Claims risk	Low.
Legal / underwriting review	Draft sub-limited extension; align with S13/S14.

7. Consider a limited asbestos / pollution professional-duty write-back in PI [Priority: Medium]

Competitor(s)	Tysers (asbestos professional-duty write-back, GBP 1m, ex-BI); Yutree (pollution write-back for own negligence)
What the competitor does	Cover PI liability that arises purely from negligent professional advice touching asbestos/pollution — not the contamination itself.
Current TMHCC position	S12 excludes asbestos and pollution outright.
Gap / opportunity	Genuine E&O exposures (e.g. negligent advice/specification) fall in the exclusion gap.
Proposed TMHCC action	Consider a narrow, sub-limited write-back limited to negligent advice, expressly excluding bodily injury and the contamination itself.
Commercial benefit	Closes a defensible E&O gap without taking environmental risk.
Broker / client benefit	Helpful for consultancy/advisory media clients.
Underwriting risk	Medium — ring-fence to negligent advice; exclude BI and clean-up.
Claims risk	Medium; cap tightly.
Legal / underwriting review	Careful drafting essential — keep BI and contamination excluded.

8. Make Increased Cost of Working / Book Debts explicit in BI [Priority: Medium]

Competitor(s)	Allianz (ICOW; Book Debts)
What the competitor does	Presents ICOW/AICOW and Book Debts as named, discrete cover heads (AXA XL also names

Indicative wording comparison — broking reference only. Refer to the full policy wordings. Subject to TMHCC legal/underwriting sign-off.

	Rent Receivable/Turnover).
Current TMHCC position	BI cover exists (S3) but ICOW/book-debts may be implicit.
Gap / opportunity	Presentational — competitors show more named BI heads.
Proposed TMHCC action	Confirm and, if needed, name ICOW/AICOW and book-debts heads expressly in S3.
Commercial benefit	Improves like-for-like BI presentation.
Broker / client benefit	Easier BI comparison at point of sale.
Underwriting risk	Low — clarification, not broadening (if already covered).
Claims risk	Neutral.
Legal / underwriting review	Confirm S3 scope; adjust headings only.

9. Adopt a King's Counsel dispute-resolution clause in Media Liability [Priority: Low-Medium]

Competitor(s)	Yutree (KC clause)
What the competitor does	On a defence/settlement dispute, the matter is referred to a mutually-agreed King's Counsel whose view binds both parties.
Current TMHCC position	Relies on a general mediation/dispute condition.
Gap / opportunity	Drafting-clarity opportunity; reduces coverage friction.
Proposed TMHCC action	Add a KC-determination clause to S12 defence/settlement provisions.
Commercial benefit	Signals fair-claims handling.
Broker / client benefit	Reassures clients on defence disputes.
Underwriting risk	Low — procedural.
Claims risk	Reduces dispute cost.
Legal / underwriting review	Standard clause; confirm cost-allocation wording.

10. Confirm/clarify computer-breakdown cover within S1/S2 [Priority: Low-Medium]

Competitor(s)	Yutree (standalone Computer Breakdown section)
What the competitor does	Dedicated first-party computer-breakdown section.
Current TMHCC position	IT/breakdown consolidated within S1/S2 (per prior drafting).
Gap / opportunity	Presentational — a competitor shows a named breakdown section.
Proposed TMHCC action	Add an explicit 'computer/IT breakdown' sub-heading or signpost within S1/S2.
Commercial benefit	Removes a perceived gap.
Broker / client benefit	Clear answer to 'is breakdown covered?'.
Underwriting risk	Low — clarification.
Claims risk	Neutral.
Legal / underwriting review	Confirm breakdown is within S1/S2; add signpost.

11. Add a defined term for 'Media Material' [Priority: Low]

Competitor(s)	Tysers (defines Media Material)
What the competitor does	Defines the subject-matter of cover precisely.
Current TMHCC position	Uses 'data, text, sounds, images or similar content' descriptively.
Gap / opportunity	Minor drafting-clarity opportunity.
Proposed TMHCC action	Consider adding a 'Media Material' (or 'Content') definition.
Commercial benefit	Sharper wording.
Broker / client benefit	Clearer scope.
Underwriting risk	Nil.
Claims risk	Reduces ambiguity.
Legal / underwriting review	Optional drafting polish.

12. LEAVE UNCHANGED — patents, communicable disease and default US/Canada exclusion

[Priority: Low]

Competitor(s)	Tysers (patents, worldwide); AXA XL (supports restriction)
What the competitor does	Tysers covers patents and is worldwide; AXA XL by contrast excludes terrorism and punitive damages ABSOLUTELY and carries a broad communicable-disease and cyber exclusion — evidencing that disciplined restrictions are market-normal.
Current TMHCC position	Excludes patents; carries a broad communicable-disease exclusion; default ex-US/Canada

Indicative wording comparison — broking reference only. Refer to the full policy wordings. Subject to TMHCC legal/underwriting sign-off.

	jurisdiction.
Gap / opportunity	These are deliberate, defensible restrictions — not true gaps.
Proposed TMHCC action	Leave unchanged (offer US/Canada only as a rated option per rec. 2).
Commercial benefit	Protects portfolio profitability and reinsurance terms.
Broker / client benefit	Explain as disciplined underwriting, not a deficiency.
Underwriting risk	Retaining these protects TMHCC — broadening would materially increase volatility.
Claims risk	Patents and pandemics are high-severity/systemic.
Legal / underwriting review	No change recommended; document rationale.

5 Exclusion write-backs to consider

Where a competitor narrows an exclusion or writes cover back, and whether TMHCC should follow. Exclusions are not softened lightly — each note states the underwriting view.

Exclusion area	Competitor	What they do	TMHCC position	Recommended TMHCC action	Priority
Asbestos (PI)	Tysers	Professional-duty write-back (GBP 1m, ex-BI)	TMHCC excludes asbestos in PI	Consider narrow negligent-advice write-back (ex-BI, ex-contamination)	Medium
Pollution (PI)	Yutree	Write-back for insured's own negligent act/error/omission	TMHCC excludes pollution in PI	Consider narrow negligent-advice write-back	Medium
USA/Canada jurisdiction (PI)	Tysers	No jurisdiction exclusion (worldwide)	TMHCC excludes actions outside Jurisdiction (default ex-US/Canada)	Offer rated worldwide/US-Canada option; keep default	High
Patent infringement (PI)	Tysers	Patents covered within IP	TMHCC excludes patents	At most a limited defence-costs write-back; otherwise leave excluded	Low
Cyber/data exclusion vs PI	(TMHCC favourable)	Yutree strips cyber-related PI; AXA XL blanket cyber exclusion	TMHCC dis-applies cyber/date exclusion to S12-15	No change — retain as a TMHCC strength	n/a
Fines/penalties (PI)	(TMHCC favourable)	TMHCC writes back defamation awards & permitted punitive; AXA XL excludes absolutely	TMHCC already favourable	No change — retain	n/a

Underwriting stance: Adopt the asbestos and pollution write-backs ONLY in a narrow, sub-limited, negligent-advice form that keeps bodily injury and the contamination/clean-up itself excluded. Offer worldwide/US-Canada as a rated option. Do NOT write patents back beyond, at most, limited defence costs.

6 Definitions to consider expanding or clarifying

Definition	Competitor benchmark	Current TMHCC	Proposed clarification	Priority
'Media Material' / 'Content'	Tysers defines 'Media Material'	TMHCC uses 'data, text, sounds, images or similar content' descriptively.	Add a defined term to sharpen the subject-matter of S12 cover.	Low
Territory – 'Geographical Limits' / 'Jurisdiction'	Tysers (worldwide)	Default worldwide ex-US/Canada; Legal Action exclusion bars actions outside Jurisdiction.	Define a clear optional worldwide / incl.-US-Canada basis selectable in the Schedule.	High
'Cyber act' / 'Computer System' / 'Virus'	Yutree defines 'Cyber act'	TMHCC defines 'Computer System' and 'Virus' within S12 and operates a separate CyberGuard section.	Align S12 cyber definitions with the CyberGuard section to avoid overlap/ambiguity.	Medium
'Employee' / freelancers & contractors	Tysers; Yutree (broad employee defs)	TMHCC S12 includes self-employed/freelance under direction & control – already broad.	Confirm freelancers/loaned staff captured consistently across sections.	Low

7 Conditions / claims obligations to consider improving

- **Adopt:** Adopt a King's Counsel dispute-resolution clause in S12 (as Yutree) to give clients certainty on defence/settlement disputes — procedural, low risk.
- **Clarify:** Add an express cross-reference in S12 confirming that statutory / criminal-defence cover is provided under S13 (Legal Expenses) and S14 (Management Liability).
- **Clarify:** Add a signpost in S1/S2 confirming computer / IT breakdown is included (Yutree shows a named Computer Breakdown section).
- **Retain:** RETAIN claim-notification as an express condition precedent — this is more protective than the competitors and should not be softened.
- **Retain:** RETAIN the detailed S12 computer-security conditions — strong risk control; ensure they are workable for SME media clients.

8 Limits and sub-limits to consider reviewing

Sub-limit	TMHCC today	Competitor benchmark	Recommendation
Criminal / statutory defence (S12)	DP defence only (GBP 250k)	Tysers GBP 1m; Yutree GBP 250k	Add a modest S12 criminal/regulatory defence sub-limit OR cross-refer to S13/S14.
Representation costs (S12)	Via DP defence only	Tysers GBP 25k	Introduce a GBP 25k representation-costs sub-limit.
Distributors & purchasers (S12)	Not offered	Tysers up to 5x limit	If adopted, cap the aggregate (e.g. a defined multiple of the limit).
Loss of documents (S12)	Per Schedule	Tysers GBP 1m	Confirm an explicit sub-limit for parity of presentation.
Virus transmission (S12)	GBP 500k	Tysers GBP 250k	TMHCC already higher – retain as a strength.

9 Market-leading wording opportunities

Implemented together, the high-priority items let TMHCC claim a genuine, evidence-based market-leading position:

- 'The only media & entertainment wording with all fifteen sections – now including a Personal Accident & Business Travel option.'
- 'Worldwide media-liability cover available, including a rated US/Canada extension.'
- 'Distribution chain protected – distributors & purchasers extension.'
- 'Standalone cyber, legal expenses and management liability built in – not bolt-ons.'
- 'Reputation management, withdrawal-of-content and data-protection defence as standard in media liability.'

Positioning: TMHCC can credibly market the wording as broader, clearer and more complete than all five competitor wordings reviewed (Tysers, Yutree, Liberty, Allianz and AXA XL) – subject to legal/underwriting sign-off.

10 Underwriting risk assessment

Recommendation	UW risk	Control / stance	Verdict
Personal Accident & Business Travel	Medium	Benefit schedule, age limits, hazardous-activity carve-outs	Adopt (capacity-permitting)
Worldwide / US-Canada PI option	High (if US/Canada)	Rated option, sub-limit, higher excess, defence caps; keep ex-US/Canada default	Adopt as option only
Distributors & purchasers	Medium	36-month window, certificate, control of defence, capped aggregate	Adopt with controls
Criminal-defence clarity / cross-ref	Low	Cross-reference to S13/S14; small S12 sub-limit	Adopt
Source-protection costs	Low	Small sub-limit; prospects test; consent	Adopt
Representation costs	Low	GBP 25k sub-limit	Adopt
Asbestos / pollution PI write-back	Medium	Negligent-advice only; exclude BI & contamination; tight cap	Adopt narrowly
Patents	High	Systemic severity	Leave excluded (defence-costs only at most)
Communicable disease / US-Canada default	High	Retain broad exclusion / default territory	Leave unchanged

11 Implementation roadmap

Phase 1 — Clarifications (nil / low cost)

- Cross-reference criminal/regulatory defence to S13/S14.
- Signpost computer/IT breakdown within S1/S2.
- Name ICOW/AICOW and book-debts heads expressly in S3.
- Add 'Media Material' definition; align cyber definitions.

Phase 2 — Sub-limited extensions (low risk)

- Add representation-costs (GBP 25k) and source-protection costs to S12.
- Adopt the King's Counsel dispute-resolution clause.
- Confirm explicit loss-of-documents sub-limit.

Phase 3 — Rated options & new cover (priced)

- Add Personal Accident & Business Travel option.
- Add rated worldwide / US-Canada PI territory option.
- Add Distributors & Purchasers extension with capped aggregate.
- Consider narrow asbestos / pollution negligent-advice write-backs.

Phase 4 — Document deliberate restrictions

- Record the rationale for retaining the patent, communicable-disease and default US/Canada exclusions.
- Re-issue the comparison if any competitor updates its wording or a further competitor is added.

12 Legal / underwriting sign-off notes

- All recommendations are commercial proposals and require TMHCC legal and underwriting approval before adoption.
- Any write-back must be drafted to preserve the existing exclusion's intent (especially bodily injury, contamination and systemic risk).
- Rated options (PA, worldwide/US-Canada, distributors) require pricing, reinsurance-treaty and capacity confirmation.
- Confirm freelancer/contractor and 'insured' definitions remain consistent across all amended sections.
- No cover has been invented in this strategy; every item is supported by at least one competitor wording cited above.
- All five competitor wordings (incl. AXA XL) are incorporated; revisit priorities if any competitor wording is updated.

End of Gap-Fill / Wording Enhancement Strategy.